

Kapil Gupta v. U.P. Power Corpn. Ltd. & Anr.

Allahabad High Court · Division Bench · 29 May 2014 · WRIT - C No. 31023 of 2014 · **Writ petition dismissed (relegated to the Section 127 appeal)**

HEADNOTE

A writ petition against a provisional/final assessment under Section 126 of the Electricity Act, 2003 will not ordinarily be entertained where the statutory appeal under Section 127 is available and the challenge raises only disputed questions of fact; the exceptions to the alternative-remedy rule (want of jurisdiction, breach of natural justice, or violation of fundamental rights) do not apply to a pure factual challenge, and complex factual disputes are better left to the appeal. A provisional assessment under Section 126 (Chapter XII — investigation and enforcement) can be made even in a theft case; Section 135 (Chapter XIV — offences) makes unauthorised use a criminal offence, but a person committing theft still bears the civil liability to pay for the electricity consumed.

HOLDING-UNITS

INTERPLAY · EA2003::127

Writ relegated to the statutory appeal where only factual disputes arise

QUESTION

Should a writ against a Section 126 assessment be entertained, or the consumer relegated to the Section 127 appeal?

HOLDING

Relegated to the appeal. Where the challenge to a Section 126 assessment raises only disputed questions of fact and no question of jurisdiction, vires, or breach of natural justice/fundamental rights, the writ court will not bypass the Section 127 appeal; the earlier decision on merits in this consumer's case turned on a four-year pendency, not any absolute rule, and Ashok Kumar (vires/jurisdiction) is distinguishable. ¶ [the alternative-remedy discussion \(unnumbered order\)](#)

LIMITING FACTS

The petitioner challenged a Section 126 provisional/final assessment (~Rs. 1.28 crore) on the facts; no vires or jurisdictional question was raised, and the dispute involved complex questions of fact.

INTERPLAY · EA2003::126

A Section 126 assessment can be made even in a theft case

HOLDING

Section 126 (Chapter XII, investigation/enforcement) empowers a provisional assessment of charges for unauthorised use, while Section 135 (Chapter XIV, offences) makes unauthorised use a criminal offence; the two operate in different chapters, and a person committing theft/unauthorised use still bears the civil liability to pay for the consumption. A provisional assessment can therefore be made in a theft case. ¶ [the s.126/135 discussion \(unnumbered order\)](#)

PRINCIPLE TAGS

alternative-remedy-relegation A writ against a Section 126 assessment is relegated to the Section 127 appeal unless the case falls within the jurisdiction / natural-justice / fundamental-rights exceptions; pure factual disputes go to the appeal. Lead authorities: *Ashok Kumar v. State of U.P.* [897981], *M/s Popcorn Entertainment v. City Industrial Development Corporation*. ¶ [unnumbered order](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT ASSESSMENT

Not decided; the petitioner was relegated to the statutory appeal under Section 127. ¶ [unnumbered order](#)

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ashok Kumar & Others v. State of U.P.</i> 2008 (6) ADJ 660 (DB) [897981] Allahabad High Court (DB)	Where the challenge to a Section 126 assessment involves purely legal/jurisdictional issues (including the vires of a notification), which the assessing officer or the s.127 appellate authority cannot decide, the writ petition is entertained without relegating the party to the alternative remedy.	Distinguished — inapplicable to a pure factual challenge with no vires/jurisdictional issue. ¶ unnumbered order	Petitioner	Distinguished
<i>M/s Popcorn Entertainment v. City Industrial Development Corporation</i> JT 2007 (4) SC 70 Supreme Court	A writ may be entertained despite an alternative remedy where the action is without jurisdiction, or in breach of natural justice, or violates fundamental rights.	Referred (through Ashok Kumar) for the three exceptions, held inapplicable here. ¶ unnumbered order	Court	Referred
<i>New Okhla Industrial Development Authority v. Kendriya Karmachari Sahkari Grih Nirman Samiti</i> 2006 (II) RJ 1365 [293050] Supreme Court	The High Court has jurisdiction under Article 226 to try issues of fact and law, but where the petition raises complex questions of fact requiring evidence, it should ordinarily decline and relegate the party to the normal remedy.	Applied against the petitioner: complex factual disputes are better left to the appeal. ¶ unnumbered order	Petitioner	Distinguished
<i>Mahanta Moti Das v. S.P. Sahid</i> [254621] Supreme Court	Where a question involves investigation of complicated facts and recording of evidence, the High Court may refuse to decide it in a writ proceeding.	Referred (within New Okhla) on declining writ jurisdiction over complex facts. ¶ unnumbered order	Court	Referred
<i>Gunwant Kaur v. Municipal Committee, Bhatinda</i> (1969) 3 SCC 769 Supreme Court	In a petition under Article 226 the High Court has jurisdiction to try issues both of fact and law.	Referred (within New Okhla). ¶ unnumbered order	Court	Referred

SCJ-040 · Kapil Gupta v. U.P. Power Corpn. Ltd. & Anr. · · Supply Code Jurisprudence

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